

Jacobson believes that the ideals of Mill and his stance regarding freedom of speech, have been misunderstood by revisionists, resulting in “two interpretive errors” (83), which turned into the supporting of “conclusions far less congenial to freedom of expression”. (84) So, what are these “two errors”? First, the revisionists assume that Mill believed in some sort of “harm principle” (84); and second, that Mill argued for a “marketplace of ideas”. (84) It will be shown that what Mill truly argued for was freedom of expression, though not harm directly, and that we can get closer to the truth, not due to a surplus of ideas, but rather through what Mill called the “Liberty of Thought”. (*Why Freedom of Speech Includes Hate Speech*, 83-84)

Let us take a closer look as to why assertions have been made such as that of Mill “adopting a harm principle”. (84) Jacobson can see why on the surface people may think this – he states, “It cannot be denied that Mill often uses such phrases as ‘harm to others’ and ‘harm to the interests of others’ loosely” (84), but what seems of even more importance is how Mill views harm. Jacobson writes, “The key to understanding Mill’s conception of the self-regarding” (86) – that is – actions that only affect oneself, is that “it does not differentiate bad harm from trivial or indifferent harm.” (*Why Freedom of Speech Includes Hate Speech*, 86) So then it would seem that we may cause harm when committing a self-regarding action, affecting things we may not even be aware of. When pondered for a minute, it is hard to argue against how even the smallest self-regarding action can affect more than the person performing it. So if not a principle of harm then what? Mill believed in what he called the “principle of liberty” (84), and Jacobson highlights its importance, stating, “Mill’s commitment to a comprehensive Liberty of Thought expressly protects the freedom to express any opinion, as a matter of ethical discussion, regardless of its harmful consequences.” (*Why Freedom of Speech Includes Hate Speech*, 84) So, then Mill just simply addressed that there is no way of not harming another, even with the

smallest of self-regarding acts, and therefore it would be incorrect for revisionists to assume that he outwardly supported harm.

The second “error” brings us to this idea regarding Mill that seems to think that he wanted some sort of *village of voices* – a place where thoughts and ideas can be expressed; for it doesn’t matter the expression, what only matters is that people get to do and say what they want. However, this is not what Mill had in mind. “The toleration that Mill extends to all opinions”, Jacobson honorably writes, “which allows them to be expressed and discussed regardless of their truth, morality, or even harmfulness, should be applied to alien cultures and practices.” (91) So, we should look at having the ability to discuss and express things freely as a step in the right direction of obtaining certain knowledge and truths. Therefore, Mill “concludes that the Liberty of Thought is a necessary condition for knowledge, though it only contingently promotes true belief.” (*Why Freedom of Speech Includes Hate Speech*, 90)

All in all, Mill doesn’t support the idea of harm, but rather the idea of free expression; it’s just unfortunate that some of us choose to harm ourselves and/or others when given such freedom. To add, one shouldn’t think that Mill advocated for freedom of expression just so everyone can throw around and sell ideas to each other, but rather to limit expression is to potentially limit knowledge, and this will limit our understanding of the truth. Jacobson concludes that it’s important to understand “the fact that two of the most popular objections to [Mill’s defense] of freedom of speech rest on these errors.” (*Why Freedom of Speech Includes Hate Speech*, 91)